

26PR00716 Matter of Thomas Shanks Trust

County: sonoma

Division: Probate

Hearing date: 2027-01-22

Motion: Petition for an Order Appointing Trustee, Modifying Trust, and Confirming Trust Assets

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Matter of Thomas Shanks Trust

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Petition for an Order Appointing Trustee, Modifying Trust, and Confirming Trust Assets

Tentative Ruling: The matter is CONTINUED to Friday, January 29, 2026 at 9:30 a.m. in Department 63 as explained below.

Probate Code section 851 requires that entities in possession of the accounts at issue be served at least 30 days prior to the day of the hearing. Merrill Lynch, Coinbase, and Binance were all served on September 11, 2026, which is only 13 days before the hearing. The Court may not shorten the time for notice. (Prob. Code § 851(d).) Individual beneficiaries were only given 14 days' notice instead of the required 30 days pursuant to Probate Code section 17203. Furthermore, the petition seeks to confirm an Exchange Bank checking account as a Trust asset. There is no proof of personal service for Exchange Bank. Petitioner shall serve notice of the continued hearing date to all necessary beneficiaries and entities, allowing for the statutorily required 30-day notice, and file updated proofs of service.

Alternatively, if the petitioner can obtain waivers of notice from these people and entities, they may file them in advance of the hearing and request to appear at the hearing (in accordance with applicable local rules) to present the waiver to the Court, potentially avoiding the continuance. Once the notice issued is cured, absent objection, the Court is inclined to approve the petition.